

## 25SMCV03948 25SMCV03948

County: los-angeles

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Case Number: 25SMCV03948 Hearing Date: August 12, 2026 Dept: P

Tentative

Ruling

La

Collina, LLC v. FJKJ, LLC, Case No. 25SMCV03948

FJKJ's

Motion for Judgment on the Pleadings

Hearing

Date: August 12, 2026

Background

La

Collina, LLC sues Defendant FJKJ, LLC for private and public nuisance. La Collina alleges that it owns a single-family home located at 1230 La Collina Dr., Beverly Hills, CA, and that FJKJ owns the property up the hill from La Collina's property, located at 1235 N. Sierra Alta Way, Los Angeles, CA. (Complaint, ¶¶ 1-3.) La Collina alleges that FJKJ constructed a steel structure, two to three stories high, above the La Collina property without obtaining permits from the Los Angeles Department of Building and Safety. (Id. at ¶ 8.) Plaintiffs seek temporary and permanent restraining orders preventing FJKJ from building unpermitted structures, damages, and attorneys' fees.

On August

1, 2025, La Collina filed the complaint.

On

November 11, 2025, the Court granted an order for service by publication.

On January

29, 2026, FJKJ answered.

On July

13, 2026, FJKJ filed this Motion for Judgment on the Pleadings. On July 30, 2026, La Collina filed opposition. On August 5, 2026, FJKJ filed a reply.

## Arguments

FJKJ

argues that La Collina does not state a claim for private nuisance because it does not allege facts showing that the steel structure interfered substantially with La Collina's use and enjoyment of its property and because La Collina pleads no physical invasion of or damage to its property. (MJOP, p. 5.) FJKJ also argues that the steel structure is not a nuisance per se because there is no statute declaring it to be a private nuisance. (Id. at p. 6.) FJKJ argues that La Collina's second claim for public nuisance fails because La Collina does not allege a special injury different from that suffered by members of the general public. (Id. at p. 7.) FJKJ argues that La Collina's claim for declaratory relief fails because without La Collina's nuisance claims, there are no grounds for the Court to issue declaratory relief. (Id. at p.8.) FJKJ also argues that there is no actual controversy between the parties requiring a declaration. (Id. at pp. 9-10.)

In

opposition, La Collina argues that FJKJ improperly seeks the resolution of factual issues in this motion. (Opposition, pp. 1-3.) La Collina argues that the complaint states a claim for private nuisance because it claims 'special injury,' by claiming that FJKJ constructed the steel structure without permits or soil studies and poses an imminent risk to La Collina and other properties. (Id. at p. 7.) La Collina argues that Defendants' authority is distinguishable, and the elements of substantial damage and unreasonable interference are issues of fact improper for resolution at this stage. (Id. at p. 8.) La Collina argues that the complaint states a claim for public nuisance because it alleges, "at Paragraphs 11, 13, and 14 that Defendant's illegal construction has resulted in substantial impacts [sic] and harm to the surrounding properties." (Opposition, p. 10.) Finally, La Collina argues that its declaratory relief action is not

superfluous and should not be dismissed. (Id. at p. 11.)

In reply,

FJKJ argues that the opposition confirms the complaint's defects. FJKJ argues that the complaint does not allege facts showing a present, substantial, and unreasonable interference with La Collina's use and enjoyment of its own property. (Reply, p. 3.) FJKJ argues that each of the complaint's allegations of damages are contingent, risk based, or a bare legal conclusion. (Id. at p. 4.) Next, FJKJ argues that the alleged permitting violations do not establish nuisance per se because a nuisance per se requires that a statute expressly declare a condition to be a nuisance. (Id. at p. 5.) FJKJ argues that the opposition admits that the claim for public nuisance is deficient because it confirms that the harm alleged to La Collina is the same kind of harm alleged to the surrounding properties. (Id. at p. 6.) Finally, FJKJ argues that the declaratory relief claim should be dismissed as duplicative and non-justiciable. (Id. at pp. 7-8.) FJKJ argues that the opposition identifies no curative facts, so leave to amend should be denied. (Id. at p. 10.)

Governing

Law Motion for Judgment on the Pleadings

Discussion

Procedural

Issues

a.

Meet

and Confer

The

parties met and conferred on this motion on July 10, 2026, by telephone. (Rossman Decl., ¶ 7.) The meet and confer requirement is satisfied.

Nuisance

California

law recognizes two kinds of claims for nuisance: private nuisance and public nuisance. The primary difference is the type of harm a private plaintiff must

allege. A private nuisance alleges an injury to a property right, while a claim for public nuisance alleges a serious harm to an individual deriving from a harm to the community. (Civ. Code, §§ 3479, 3780.)

“To prevail on action for private nuisance, plaintiff must first prove interference with plaintiff’s use and enjoyment of his or her property; second, invasion of plaintiff’s interest in use and enjoyment of land must be substantial, i.e., that it causes plaintiff to suffer substantial actual damage; third, interference with protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such nature, duration or amount as to constitute unreasonable interference with use and enjoyment of land.” (Chase v. Wizmann (2021) 71 Cal.App.5th 244, 254, citations omitted.) The element of substantial and unreasonable damage is a question of fact under an objective standard: whether a person of normal health and sensibilities living in the same community would be substantially damaged by the interference and whether an impartial reasonable person would consider the interference unreasonable. (Ibid.)

A private nuisance is a nuisance per se where a statute or law specifically declares it to be a nuisance. (People ex rel. Gallo v. Acuna (1997) 14 Cal.4th 1090, 1105.)

The necessary elements for public nuisance are: (1) the defendant, by acting or failing to act, created a condition that was (a) harmful to health or (b) obstructed the free use of the property so as to interfere with the comfortable enjoyment of life or property; (2) the condition affected a substantial number of people at the same time; (3) an ordinary person would be reasonably annoyed or disturbed by the condition; (4) the seriousness of the harm outweighs the social utility of the conduct; (5) the plaintiff did not consent to the conduct; (6) the plaintiff suffered harm that was different from the type of harm suffered by the general public; and (7) the defendant’s conduct was a substantial factor in causing plaintiff’s harm. (Birke v. Oakwood Worldwide (2009) 169 Cal. App. 4th 1540, 1548.) A public nuisance may be the subject of an action to abate by a private person only when the nuisance is specially injurious in kind to him.” (Buchanan v. Los Angeles County Flood Control Dist. (1976) 56 Cal.App.3d 757, 768.)

Though La

Collina is correct that the determination of whether an injury is substantial and unreasonable is a question of fact, the complaint must still allege some injury to La Collina's quiet enjoyment of its property to state a claim for private nuisance. (See Civ. Code § 3479.) La Collina alleges a conclusory injury of "interference with Plaintiff's quiet use and enjoyment of the La Collina and monetary damages in an amount not less than \$100,000." (Complaint, ¶ 19) La Collina, however, does not describe what that injury is.

La Collina

also does not state a claim for nuisance per se because it does not allege that the steel structure is a nuisance pursuant to any federal, state, or local statute or ordinance. "A statutory sanction cannot be pleaded in justification of acts which by the general rules of law constitute a nuisance, unless the acts complained of are authorized by the express terms of the statute under which the justification is made, or by the plainest and most necessary implication from the powers expressly conferred, so that it can be fairly stated that the legislature contemplated the doing of the very act which occasions the injury." ' ' (Friends of H Street v. City of Sacramento (1993) 20 Cal.App.4th 152, 160; Hassell v. San Francisco (1938) 11 Cal.2d 168, 171.)

An

unpermitted structure may be a nuisance but is not per se a nuisance if there is no statute declaring it such.

FJKJ's

demurrer to La Collina's first claim for private nuisance is SUSTAINED.

As to La

Collina's claim for public nuisance, the opposition clearly articulates why the claim fails: "Here, the Complaint alleges at Paragraphs 11, 13 and 14 that Defendant's illegal construction has resulted in substantial impacts and harm to the surrounding properties." (Opposition, p. 10.) The complaint contains no other allegations of special harm to La Collina's property.

For a private

person to state a claim for public nuisance, they must allege injury different from that to the general public. (Buchanan v. Los Angeles County Flood Control Dist. (1976) 56 Cal.App.3d 757, 768.)

FJKJ's

demurrer to La Collina's second claim for public nuisance is SUSTAINED.

Declaratory

Relief

Procedurally,

with exceptions, a demurrer to a claim for declaratory relief must be overruled, if an actual controversy is alleged, even if plaintiffs are not entitled to a judgment in their favor. (*Nede Mgmt. Inc. v. Aspen American Ins. Co.* (2021) 68 Cal.App.5th 1121, 1132 [where complainants adequately allege an actual controversy in support of a declaratory relief claim, demurrers technically should be overruled, but sustaining and declaring adversely is nonprejudicial error, when the pleading fails to allege entitlement to relief on the merits, as questions of law based on undisputed allegations.])

La Collina

alleges that its claim for declaratory relief is brought on the same grounds as its nuisance claims. (Complaint, ¶ 32.) Since the complaint does not allege that any harm has occurred yet, La Collina's claim for declaratory relief also fails.

Leave

to Amend

The

complaint's only allegations of harm are conclusory. That said, the facts alleged are not exhaustive, and La Collina contends generally that the steel structure has impacted the soil in the area and is an eyesore. (Complaint, ¶ 13-14.) Though these claims do not properly allege an injury that states a claim for nuisance or creates a controversy that substantiates a claim for declaratory relief, there is a reasonable probability that La Collina will be able to state a claim if given leave to amend.

Conclusion

FJKJ's

Motion for Judgment on the Pleadings is GRANTED with leave to amend.